

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 25-25

**20230930-DK-BUTTERFLY-1, INC., *Complainant* v.
CMA CGM S.A., *Respondents***

**RESPONDENT CMA CGM S.A.'S
ANSWER AND AFFIRMATIVE DEFENSES**

Respondent CMA CGM S.A. (“Respondent” or “CMA”), by counsel, for its Answer and Affirmative Defenses to the Verified Complaint (“Complaint”) filed by Complainant 20230930-DK-BUTTERFLY-1, Inc. (“Complainant” or “Butterfly”), states as follows:

INTRODUCTION

1. The allegations in Paragraph 1 of the Complaint contain conclusions of law to which no answer is required. To the extent an answer is required, CMA denies the same.

2. In response to Paragraph 2 of the Complaint, CMA admits only that Complainant filed a Chapter 11 bankruptcy petition on April 23, 2023. All other allegations in Paragraph 2 of the Complaint are denied.

3. CMA denies the allegations in Paragraph 3 of the Complaint.

4. CMA denies the allegations in Paragraph 4 of the Complaint.

5. CMA denies the allegations in Paragraph 5 of the Complaint.

6. CMA denies the allegations in Paragraph 6 of the Complaint.

7. CMA denies the allegations in Paragraph 7 of the Complaint.

8. The allegations in Paragraph 8 of the Complaint contain conclusions of law to which no answer is required. To the extent an answer is required, CMA denies the same.

THE COMPLAINANT

9. CMA is without sufficient information to admit or deny the allegations of Paragraph 9 of the Complaint and, therefore denies the same.

THE RESPONDENT

10. CMA admits only that it is a *société anonyme* existing under the laws of the Republic of France with a principal place of business at Boulevard, Jacques Saade 4, Quai d'Arenc, 13225 Marseilles, Cedex 02, France. CMA further admits only that CMA CGM (America), LLC acts as CMA's agent for certain purposes within the United States, and that CMA CGM (America), LLC is a New Jersey limited liability company with a principal office at 1 CMA CGM Way, Norfolk, Virginia, 23502. CMA further admits only that it is a vessel-operating "ocean common carrier" and offers container shipping services to customers both within and outside the United States. All other allegations in Paragraph 10 of the Complaint are denied.

JURISDICTION AND LEGAL AUTHORITY

11. The allegations in Paragraph 11 of the Complaint contain conclusions of law to which no answer is required. To the extent an answer is required, CMA denies the same.

12. The allegations in Paragraph 12 of the Complaint contain conclusions of law to which no answer is required. To the extent an answer is required, CMA denies the same.

13. CMA denies the allegations in Paragraph 13 of the Complaint.

14. CMA denies the allegations in Paragraph 14 of the Complaint.

15. In response to Paragraph 15 of the Complaint, CMA admits only that it entered into a tolling agreement with Complainant effective as of December 4, 2024. CMA further avers that the tolling agreement, as amended, was limited in duration and expired on September 2, 2025. CMA also avers that the tolling agreement did not revive any claims already barred by the statute

of limitations at the time it was executed, and that such claims remain time barred. All other allegations in Paragraph 15 of the Complaint are denied.

THE MATTERS COMPLAINED OF (ALLEGED FACTS)

16. CMA denies the allegations of Paragraph 16 of the Complaint.
17. CMA denies the allegations of Paragraph 17 of the Complaint.
18. CMA denies the allegations of Paragraph 18 of the Complaint.
19. CMA denies the allegations of Paragraph 19 of the Complaint.
20. CMA denies the allegations of Paragraph 20 of the Complaint.
21. The allegations in Paragraph 21 of the Complaint contain conclusions of law to which no answer is required. To the extent an answer is required, CMA denies the same.
22. The allegations in Paragraph 22 of the Complaint contain conclusions of law to which no answer is required. To the extent an answer is required, CMA denies the same.
23. CMA denies the allegations of Paragraph 23 of the Complaint.
24. CMA denies the allegations of Paragraph 24 of the Complaint.
25. CMA denies the allegations of Paragraph 25 of the Complaint.
26. CMA denies the allegations of Paragraph 26 of the Complaint.

CAUSES OF ACTION

COUNT I: VIOLATION OF 46 U.S.C. § 41102(c) & 46 C.F.R. § 545.5

27. Paragraph 27 of the Complaint does not set forth any factual allegations to which a response is required.
28. CMA denies the allegations of Paragraph 28 of the Complaint.
29. CMA denies the allegations of Paragraph 29 of the Complaint.

COUNT II: VIOLATION OF 46 U.S.C. § 41104(a)(10)

30. Paragraph 30 of the Complaint does not set forth any factual allegations to which a response is required.

31. CMA denies the allegations of Paragraph 31 of the Complaint.

CAUSATION

32. CMA denies the allegations of Paragraph 32 of the Complaint.

33. CMA denies the allegations of Paragraph 33 of the Complaint.

REPARATIONS SOUGHT

34. CMA denies the allegations of Paragraph 34 of the Complaint.

35. CMA denies the allegations of Paragraph 35 of the Complaint.

PRAYER FOR RELIEF

36. CMA denies that Complainant is entitled to any of the relief set forth in the numbered and unnumbered paragraphs following the heading “IX. Prayer for Relief.”

37. Any factual allegations in the Complaint not specifically admitted herein are denied.

AFFIRMATIVE DEFENSES

1. The Complaint fails to state a claim for which relief can be granted.

2. Complainant lacks standing to assert the claims set forth in the Complaint, which is a jurisdictional defect and not curable via amendment.

3. Complainant has failed to plead essential elements of a claim under 46 U.S.C. § 41102(c), 46 C.F.R. § 545.5, or 46 U.S.C. § 41104(a)(10).

4. CMA did not commit any Shipping Act violation and is not liable to Complainant on the causes of action alleged in the Complaint.

5. At all relevant times, CMA acted in accordance with the terms of its bills of lading, contracts of carriage, and applicable tariffs.

6. Any damage sustained by Complainant was caused solely by the actions or fault of third parties for whom CMA is not responsible, specifically the freight forwarder and/or NVOCC Complainant used to arrange each of the shipments complained of in the Complaint.

7. Any damages allegedly sustained by Complainant were caused solely by its own actions or inactions.

8. Under the FMC's direct purchaser rule, Complainant is not entitled to pursue reparations against CMA as it is not a direct purchaser and did not pay the challenged charges to CMA.

9. Some or all of Complainant's claims are barred by the applicable statute of limitations.

10. Complainant's recourse under the Shipping Act, if any, for the claims alleged herein is solely against whatever party acted as a carrier with respect to the relevant shipments and not CMA.

11. Complainant has failed to take reasonable steps to mitigate its damages.

12. Complainant alleges only generalized industry conditions and lacks the specific transactional facts required to state a claim under the Shipping Act.

13. Any damages allegedly sustained by Complainant may have been caused by force majeure.

14. Complainant's reliance on the "Charge Complaint" procedures of 46 U.S.C. § 41310 is improper. CMA disputes that § 41310 applies to any of Complainant's claims in this

proceeding, and the burden of proof remains with Complainant under the pre-OSRA Shipping Act framework.

15. CMA specifically reserves the right to assert any other affirmative defenses of which it becomes aware as discovery in this matter proceeds.

WHEREFORE, Respondent, CMA CGM S.A., respectfully requests that the Presiding Officer and the Commission dismiss the Verified Complaint with prejudice, award CMA reasonable attorneys' fees and costs, and grant CMA any further relief deemed just and proper.

REQUEST FOR ORAL HEARING

Pursuant to 46 CFR 502.62(b)(3), CMA requests an oral hearing to take place in Washington, D.C.

Dated: September 29, 2025

Respectfully submitted,

/s/ K. Barrett Luxhoj

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CERTIFICATE OF SERVICE

I certify that on the 29th day of September 2025, a true copy of the foregoing was served by electronic mail on all counsel of record as follows:

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